

OFFICE OF THE SECRETARY

PO Box 942883
Sacramento, CA 94283-0001



June 19, 2019

The Honorable Kenneth K. So
Judge of the Superior Court
County of San Diego
2120 West Broadway
San Diego, CA 92112-2724

Re: Patrick Duty Johnson
CDCR No: K91836
Case No: SCD132679
Date of Sentence: March 16, 1998

Dear Honorable Kenneth K. So:

The purpose of this letter is to provide the court with the authority to resentence inmate Patrick Johnson, pursuant to Penal Code (PC) Section 1170, Subdivision (d)(1). PC Section 1170, Subdivision (d) provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation (CDCR), the court may recall a previously ordered sentence, provided the new sentence is no greater than the initial sentence.

Inmate Johnson's disciplinary history includes one Administrative, Rules Violation Report (RVR) dated November 1, 2006, for Theft of State Food, and one Serious RVR dated April 9, 1999, for Possession of Inmate Manufactured Alcohol. A review of inmate Johnson's file reveals he has participated in several Self-Help Groups and received 13 Laudatory CDC 128B's from various staff and volunteers. He also has received several above average evaluations relative to past job assignments; specifically, from the Prison Industry Authority - Fabric Products.

The Honorable Kenneth K. So
Page 2

Having reviewed the enclosed documentation it appears that inmate Johnson's sentence warrants the attention of the court. Pursuant to PC Section 1170, Subdivision (d), as the Secretary, I recommend the inmate's sentence be recalled and that he be resentenced.

Sincerely,



RALPH M. DIAZ
Secretary

Enclosures:

Abstract of Judgment
Minute Order
Court Information-Charging Documents
Cumulative Case Summary

cc: Michael M. Roddy, County Court Executive Officer
County District Attorney's Office
County Public Defender's Office